

CONFIDENTIALITY AND USE OF ASSIGNMENT SOFTWARE AGREEMENT (DEED POLL)

As an individual who has been authorized by the applicable entity(ies) listed in the attached **Register** (collectively, the “**Applicable Entities**” and each an “**Applicable Entity**”) to be given access to its Confidential Information and Information Resources, and in consideration of being provided with Confidential Information; the use of Information Resources; training with any assignment I receive (as defined below); the privilege of being allowed to provide sacred services in furtherance of my religious worship; and for other valuable consideration (of \$1.00 being payable upon demand), **I agree** to the following provisions and provide this deed poll in favour and for the benefit of each of the Applicable Entities (this “**Deed**”) pertaining to my authorization to access and use one or more of the Applicable Entities’ Confidential Information and Information Resources.

I agree that the term “**assignment**” is whatever assignment I receive from the Worldwide Order of Special Full-Time Servants of Jehovah’s Witnesses (“**Worldwide Order**”) or in cooperation with the Worldwide Order or from an Applicable Entity. I agree that the term “**Confidential Information**” means all nonpublic information (conveyed orally, in writing, or in any other format) that is or has been previously disclosed to me by one or more of the Applicable Entities that such Applicable Entity(ies) designate(s) as being confidential or which, under the circumstances surrounding disclosure, a reasonable person would understand to be confidential and/or proprietary. Confidential Information expressly includes all nonpublic information relating to one or more of the Applicable Entities’ policies or practices, financial information, technical information, computer systems, data, analysis, compilations, studies or other handwritten, typed, and printed information and documents, electronic mail, facsimile (fax) communications and printouts, voice recordings and messages, pager data and communications, any other information or data that is provided to me by one or more of the Applicable Entities, and any information received from others that any Applicable Entity is obligated to treat as confidential. I agree that the term “**Information Resources**” means collectively the computer hardware, computer software, nonpublic websites, computer-readable information, information-related media, electronically stored or produced data, source code (whether written by me or by others), telephones, cell phones, equipment, video recordings, and audio recordings, in each case provided by or on behalf of one or more of the Applicable Entities or to which I have access through my assignment. I agree to abide by all policies now in effect or that may hereafter be established by one or more of the Applicable Entities pertaining to the Confidential Information and Information Resources of such Applicable Entity(ies).

Both while I am approved to access any Confidential Information or Information Resources of any one or more of the Applicable Entities and at all times after such approval ceases:

1. I agree that all Confidential Information and Information Resources are confidential and are provided for specific use by persons approved by an Applicable Entity;
2. I will keep confidential and shall not disclose to third parties any Confidential Information, and I will continue to adhere to any one or more of the Applicable Entities’ policies regarding the confidentiality of the Confidential Information even after my approval for access to the Confidential Information and/or Information Resources ceases;
3. I will not disclose the email addresses, phone numbers, residential location, age, health status, and other personal details of any individual whose personal details I obtained through, learned of, or accessed through the Information Resources;
4. I agree that all Information Resources are the property of each Applicable Entity, respectively, and should be used only for the purpose(s) specified by any one or more of the Applicable Entities, and I agree not to use Confidential Information and the Information Resources for my own personal benefit or for the benefit of any third parties other than any one or more of the Applicable Entities;
5. I will not use electronic or other means to share, disclose, distribute, copy or excerpt from the Information Resources with, to and/or for any person or entity unless authorized by the respective Applicable Entity to do so;

6. I will not initiate any computer programming or reprogramming work or changes to the Information Resources including existing standards, definitions, or decisions without authorization and approval from the respective Applicable Entity;
7. I will not disclose any information, including the Confidential Information, used by, obtained through, or learned from my access to the Information Resources to anyone not then-authorized by the respective Applicable Entity to receive such information, unless and only to the extent legally obligated to do so (provided I shall give notice of such disclosure to the Applicable Entity that provided the information and/or the Information Resources prior to such disclosure, to the extent legally permissible);
8. I will safeguard the Confidential Information and the Information Resources using a strict degree of care (and no less than reasonable care), employ Applicable Entity-provided security procedures for protecting the Confidential Information and Information Resources, and handle all of my access privileges in accordance with the standards set by any one or more of the Applicable Entities;
9. I will not disclose, use, exploit, or abuse any security weakness that may exist in an Information Resource or release any information about security measures for any of the Information Resources (for example, I will not release information about network architecture, system diagrams, or proprietary applications) without authorization from any one or more of the Applicable Entities;
10. I will not use data storage media owned by any one or more of the Applicable Entities on computers other than those owned by an Applicable Entity, unless authorized to do so;
11. I will notify an Applicable Entity immediately upon discovery of any unauthorized use or disclosure of any Confidential Information or the Information Resources (or any other breach of this Deed) and will cooperate with the relevant Applicable Entities in every reasonable way to help the respective Applicable Entities retain possession of the Confidential Information and Information Resources and prevent its further unauthorized use and disclosure; and
12. Upon request of any one of the Applicable Entities and upon termination of my assignment, I will return all originals, copies, reproductions, and summaries of the Confidential Information and Information Resources and/or remove any Information Resources that may have been authorized to be installed on my personal devices, such as computers, cellular telephones, and/or tablets.

I understand that at any time and without prior notice, any one or more of the Applicable Entities have the right to examine, read, inspect, monitor, and audit any of the Confidential Information and Information Resources, including electronic mail messages, any document or text files, database files, any electronic communications, including any other information stored on the equipment of the Applicable Entity(ies). I understand that the Confidential Information and Information Resources are and will remain the property of the relevant Applicable Entity and that the Applicable Entities do not grant any express or implied right or license to me under its or their intellectual property, including patents, copyrights, trademarks, or trade secrets. I understand that all of the Confidential Information and the Information Resources are provided "as is" without warranty of any kind. I agree that none of the Applicable Entities will be liable for any damages whatsoever relating to my use of such Information Resources or the Confidential Information.

I acknowledge that because of the nature of the Confidential Information monetary damages may not be a sufficient remedy for unauthorized disclosure or use of the Confidential Information and/or the Information Resources and that each of the Applicable Entities shall be entitled, without waiving any other rights or remedies, to injunctive and other equitable relief (without bond and without the necessity of showing actual monetary damages).

I understand that I may perform my assignment from a location that is not owned or leased by an Applicable Entity and that an Applicable Entity may grant me a non-exclusive, nontransferable, revocable license to install software or access Internet-based subscriptions ("**Assignment**

Software”) on or from a personal device, including, but not limited to, a computer, cellular telephone, and/or tablet.

Regarding any Assignment Software:

1. I will use Assignment Software for assignment-related purposes only and not for any personal purposes or gain. An “assignment-related purpose” is any use in furtherance of an assignment received from or in cooperation with the Worldwide Order or an Applicable Entity.
2. I understand that if an Applicable Entity requests that I discontinue using any Assignment Software on my personal device(s), I am responsible for immediately uninstalling this Assignment Software.
3. I understand that if my assignment is terminated, I must immediately uninstall any and all Assignment Software from my personal device(s).
4. I understand that if I sell my personal computer or device to a third party, I must uninstall any and all Assignment Software prior to the transfer of such personal computer or device to such third party.
5. I understand that I am not authorized to copy the Assignment Software or its installation media for backup purposes or otherwise.
6. I will not share the Assignment Software or any of its components, license, or activation keys with anyone, unless explicitly authorized by the relevant Applicable Entity.
7. I will not use any tools or techniques to extract any installation and/or activation license keys or codes from the Assignment Software.
8. I will read and abide by the software manufacturer’s license agreement for any and all Assignment Software.

I understand that this Deed shall not be modified except by a written agreement executed by me and the relevant Applicable Entity(ies). This Deed shall be governed, construed and controlled by the laws of the State of New South Wales and the Commonwealth of Australia, without regard to the conflicts of law principles thereof, and the parties irrevocably consent to the non-exclusive jurisdiction of the State and Federal Courts in New South Wales. No waiver of any provision of this Deed shall constitute a waiver of any other provision(s) or of the same provision on another occasion. My obligations, as set forth in this Deed, shall survive any termination. This Deed may be executed and delivered in counterparts, each of which shall be deemed an original, but all of which together constitute the same instrument. I understand and agree that: (1) this Deed is provided jointly and severally for the benefit of each Applicable Entity; for the members and committee of any Applicable Entity that is an unincorporated association; and for any authorized agents of same (each an “**Authorized Representative**”)); and (2) this Deed is a legal document that may be relied upon and legally enforced by any Applicable Entity or Authorized Representative. If the whole or any part of a provision of this Deed is or becomes invalid or unenforceable under the law of any jurisdiction, it is to be read down to the extent necessary to ensure its validity and enforceability. If it cannot be read down, it is severed in that jurisdiction to the extent that it is invalid or unenforceable, whether it is in severable terms or not, and such finding shall not affect the validity or enforceability of any other provision of this Deed. I consent to make the above agreements and acknowledgements by electronic means, including, but not limited to, using an electronic signature. Any signature page delivered by electronic image transmission shall be binding to the same extent as an original signature page.

Register of Applicable Entities

- Christian Congregation of Jehovah's Witnesses (ABN 94 315 750 845)
- Christian Congregation of Jehovah's Witnesses (Australasia) Limited (ACN 632 883 133)
- Watchtower Bible & Tract Society of Australia (ACN 002 861 225)
- AVS Productions (Australasia) (ACN 637 339 756)
- International Bible Students Association (ABN 53 599 087 376)
- International Bible Students Association, Brisbane Ecclessia (ABN 62 141 627 787)
- Australasia Branch Office of Jehovah's Witnesses
- Watch Tower Bible and Tract Society of New Zealand (NZBN 9429042911272)
- New Zealand Association of Jehovah's Witnesses (NZBN 9429043114122)
- Christian Congregation of Jehovah's Witnesses of New Zealand (NZBN 9429043182800)
- Western Samoa Association of Jehovah's Witnesses (Incorporated)
- Jehovah's Witnesses of American Samoa
- Association of Jehovah's Witnesses in the Cook Islands (Incorporated)
- Tonga Association of Jehovah's Witnesses (Incorporated)
- Timor Association of Jehovah's Witnesses

Executed as a deed poll

Signed, sealed and delivered as a
deed poll, in favour of each
Applicable Entity, by:

Name (please PRINT clearly)

Signature

Date

In the presence of:

(the signatory must
sign in the
presence of an
unrelated witness)

Name of witness (please PRINT clearly)

Signature of witness

Name of the city, town, or locality where
the witness ordinarily resides

Occupation or description of the
witness

Signed, sealed and delivered by **Christian
Congregation of Jehovah's Witnesses
(Australasia) Limited** in accordance with section
127 of the *Corporations Act 2001 (Cth)* by:

Signature of director

Signature of director

Name of director (print)

Name of director (print)